



CHAPTER xxxviii.

An Act to confirm a Provisional Order of the Minister of Health relating to Ilfracombe. A.D. 1926.
[8th July 1926.]

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Ilfracombe) Act 1926. Short title.

[Ch. xxxviii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Order Confirmation (Ilfracombe) Act, 1926.

A.D. 1926.

SCHEDULE.

URBAN DISTRICT OF ILFRACOMBE.

Ilfracombe Order. *Provisional Order to enable the Urban District Council of Ilfracombe to put in force the Compulsory Clauses of the Lands Clauses Acts.*

WHEREAS the Urban District Council of Ilfracombe (hereinafter referred to as "the Council") require to purchase and take the lands described in the Schedule hereto for the purposes of widening opening enlarging or otherwise improving certain streets and for the making of a new street in the said Urban District (including the improvement and development of lands abutting on or adjacent to the said streets):

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

Compulsory powers of purchase.

1. The Council shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Short title.

2. This Order may be cited as the Ilfracombe Order 1926.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. xxxviii.]
Provisional Order Confirmation (Ilfracombe) Act, 1926.

The SCHEDULE above referred to.

A.D. 1926.

*Ilfracombe
Order.*

Parish of ILFRACOMBE Urban District of ILFRACOMBE
County of DEVON.

No. and Colour on Deposited Plan.	Description of Lands.	Situation.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1 Red.	House shop and premi- ses.	120 High Street.	John Kelly	—	John Kelly.
2 Red.	Ditto	121 High Street.	Ditto	—	Frank Richard Moore.
3 Red.	House offices and premi- ses.	122 High Street.	Mary Henrietta Cathcart Hugh Charles Cathcart Frederick Her- bert Reed Benjamin Leigh Skinner (Hugh Charles Cathcart Agent for the Owners).	—	William Charles Hutchings Selina Clogg James Thomas Paterson Frances Han- cock Copp May Williams.
4 Red.	Lock-up shop and premi- ses.	123 High Street.	Ditto	—	Eleanor Myatt.
5 Red.	House offices and premi- ses.	124 High Street.	Ditto	—	Hugh Charles Cathcart William B. Buchanan Hugh John Mortimer Bonnor.
6 Red.	House shop and premi- ses.	125 High Street.	Ditto	—	Francis Bale.
7 Red.	House shops and premi- ses.	126 and 127 High Street.	Ditto	—	Walter Sy- mons Ernest Clarke.
8 Red.	House shop and premi- ses.	128 High Street.	The Official Trus- tee of Charity Lands.	The Ilfra- combe Urban District Council.	Harold Wright.

[Ch. xxxviii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Order Confirmation (Ilfracombe) Act, 1926.

A.D. 1926.

*Ilfracombe
Order.*

No. and Colour on Deposited Plan.	Description of Lands.	Situation.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
9 Red.	Shops and premises.	129 High Street.	The Official Trus- tee of Charity Lands.	The Ilfra- combe Urban District Council.	Frederick Bar- rett Drake John . Hussell Jones.
10 Red.	Roadway paved foot- way and steps.	Extending from wes- tern side of Baptist Church to eastern side of No. 129 High Street.	Trustees of Bap- tist Church George Dadds only surviving John Kelly Mary Henrietta Cathcart Hugh Charles Cathcart Frederick Her- bert Reed Benjamin Leigh Skinner (Hugh Charles Cathcart Agent for the Owners) The Official Trustee of Charity Lands The Devon County Council Brian S. Miller Clerk The Ilfracombe Urban District Council H. G. Brede Clerk.	—	The Ilfracombe Urban Dis- trict Council H. G. Brede Clerk.
13 Red.	Land shed and bound- ary wall.	Rear of No. 1 Adelaide Road.	Mary Henrietta Cathcart Hugh Charles Cathcart Frederick Her- bert Reed Benjamin Leigh Skinner (Hugh Charles Cathcart Agent for the Owners).	—	Mary Henri- etta Cathcart.
14 Red.	House and premises.	No. 1 Ade- l a i d e Road.	Ditto	—	Ditto.
15 Red.	Ditto	No. 2 Ade- l a i d e Road.	Ditto	—	George Robert Nott.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. xxxviii.]
Provisional Order Confirmation (Ilfracombe) Act, 1926.

No. and Colour on Deposited Plan.	Description of Lands.	Situation.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
16 Red.	Roadway (except such part of the roadway as lies to the south of the southern boundary of plots 5 6 and 7 and of the line of such boundary produced in a westward direction.	Adelaide Road.	Mary Henrietta Cathcart Hugh Charles Cathcart Frederick Her- bert Reed Benjamin Leigh Skinner (Hugh Charles Cathcart Agent for the Owners).	—	—
17 Red.	House and shop.	16 Broad Street.	Joseph Healey -	—	Joseph Healey.
18 Red.	Yard sheds boundary wall and strip of land.	Castle Yard Portland Street.	George Ernest Harris Ernest William Harris William Benoke Arthur Cuthbert Trebble Henry Raymond Trebble.	—	Francis May Tucker.

A.D. 1926.
 —
*Ilfracombe
 Order.*

Lord of the Manor—Humphry Joseph Weld.

The above-mentioned lands form part of the area delineated and coloured red on a plan in duplicate (being a copy of the deposited plan) sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Ilfracombe Order 1926" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited in the Offices of the Council within fourteen days from the date of this Order.

Given under the Official Seal of the Minister of Health
 this Twenty-first day of April One thousand nine hundred
 and twenty-six.

(L.S.)

H. W. S. FRANCIS
 Assistant Secretary Ministry of Health.

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